NOTE: CHANGES MADE BY COURT

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, and DOES 1-5,

Defendants.

Case No. 8:22-cv-01727-FWS-JDE

ORDER RE STIPULATION REGARDING BRIEFING SCHEDULE FOR PLAINTIFF'S MOTION FOR CLASS CERTIFICATION [32]

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Having reviewed and considered the Parties' Stipulation regarding Briefing Schedule for Plaintiff's Motion for Class Certification [32] (the "Stipulation"), and for the good cause demonstrated in the Stipulation, the court **ORDERS** the March 6, 2023, Scheduling Order [33] **MODIFIED** to read as follows (with changes indicated by italics):

EVENT	DATE
Check one: [x] Jury Trial or [ ] Bench Trial **Tuesday at 8:30 a.m.**	**First Day: 5/28/2024**
Parties' Estimated Trial Length	**6-7 days**
Final Pretrial Conference & Hearing on Motions in Limine **[Thursday at 8:30 a.m., at least 12 days before trial]**	**5/9/2024**
Last Date to Hear Motion to Amend Pleadings /Add Parties [Thursday]	**6/1/2023**
Deadline for Plaintiff's Class Certification Motion	***9/14/2023***
Deadline for Defendants' Opposition to Plaintiff's Class Certification Motion	***10/12/2023***
Deadline for Reply in Support of Plaintiff's Class Certification Motion	***11/2/2023***
Hearing on Plaintiff's Class Certification Motion	***12/7/2023 at 10:00 a.m.***
Non-Expert Discovery Cut-Off **(no later than deadline for filing dispositive motions)**	**11/9/2023**
Expert Disclosure (Initial)	**11/9/2023**
Expert Disclosure (Rebuttal)	**12/7/2023**
Expert Discovery Cut-Off	**1/11/2024**
Last Date to **Hear** Motions **[Thursday]** • Motion for Summary Judgment due at least 6 weeks before hearing • All other motions due at least 4 weeks before hearing • Opposition due 2 weeks after Motion is filed • Reply due 1 week after Opposition is filed	**2/15/2024**
Deadline to Complete Settlement Conference [L.R. 16-15] Select one: [ ] 1. Magistrate Judge (with Court approval) [ ] 2. Court's Mediation Panel [x] 3. Private Mediation	**2/29/2024**

Trial Filings (first round) • Motions in Limine with Proposed Orders • *Daubert Motions with Proposed Orders*[1] • Memoranda of Contentions of Fact and Law [L.R. 16-4] • Witness Lists [L.R. 16-5] • Joint Exhibit List [L.R. 16-6.1] • Joint Status Report Regarding Settlement • Proposed Findings of Fact and Conclusions of Law [L.R. 52] (bench trial only) Declarations containing Direct Testimony, if ordered • (bench trial only)	**4/18/2024**
Trial Filings (second round) • Oppositions to Motions in Limine • *Oppositions to Daubert Motions*[2] • Joint Proposed Final Pretrial Conference Order [L.R. 16-7] • Joint/Agreed Proposed Jury Instructions (jury trial only) • Disputed Proposed Jury Instructions (jury trial only) • Joint Proposed Verdict Forms (jury trial only) • Joint Proposed Statement of the Case (jury trial only) • Proposed Additional Voir Dire Questions, if any (jury trial only) • Evidentiary Objections to Declarations of Direct Testimony (bench trial only)	**4/25/2024**

IT IS SO ORDERED.

Dated: March 8, 2023

Hon. Fred W. Slaughter
UNITED STATES DISTRICT JUDGE

[1] *Daubert* motions and oppositions to *Daubert* motions shall not exceed ten (10) pages in length.

[2] Pursuant to this court's order on pretrial and trial procedures, the parties shall not file replies to the motions in limine. (See Dkt. 34 at 4 ("Unless the court determines otherwise, counsel shall not file any replies.").) In addition, unless the court determines otherwise, the parties shall not file replies to any *Daubert* motions.